

Tentative Rulings
Judge James M. Schurz
Department B

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing. If the connection is inadequate, the Court may proceed with the hearing in the party's absence.

Tentative Rulings for the following cases will be emailed to the parties. If you have not received the Tentative Ruling, please call (415) 444-7260 or reach out to JudicialSupport@marin.courts.ca.gov.

In addition, copies of the Tentative Rulings will be provided either electronically or in paper at the courthouse in the Clerk's Office (Room 113), Legal Self-Help or Court Administration (Room 116).

FL 1301652 Lori Lavinthal and Brian Archer
FL0002353 Jean Claude Van Rooyen and Alonya Trish Van Rooyen
FL0002593 Brian Kestler and Aubrey Cubilo